

# GUIDELINES ON THE USE OF COOKIES AND SIMILAR TRACKING TECHNOLOGIES

## Guidelines of the Information Commissioner

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Purpose of the document:

The Information Commissioner issues updated guidelines with the aim of harmonizing practices that arise from both national supervisory procedures and issued opinions, as well as from the guidelines and recommendations of the European Data Protection Board (EDPB). With these guidelines, we aim to present to website operators in a simple, clear, and transparent manner how to practically use cookies in accordance with applicable legislation.

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## Guidelines of the Information Commissioner

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## 1. INTRODUCTION

The use of web cookies and other similar tracking technologies is permitted in Europe only if websites comply with certain rules that protect the user's device and privacy. The rules are primarily established by the Electronic Communications Act and the General Data Protection Regulation. However, in practice, we often encounter specific questions on how to ensure compliance with these rules, which is why the Information Commissioner has prepared updated guidelines on the use of cookies and similar technologies.

The Information Commissioner issues these guidelines with the aim of standardizing practices that arise from both national supervisory procedures and issued opinions, as well as from the guidelines and recommendations of the European Data Protection Board (EDPB). With these guidelines, we aim to present to website operators in a simple, clear, and transparent manner how to practically use cookies in accordance with applicable legislation.

The guidelines are divided into three chapters: first, the fundamental concepts and types of cookies and similar technologies are presented; the next chapter summarizes the relevant legislation; and the final chapter contains instructions for ensuring compliance. Each chapter, in addition to the main text, includes references to sources and additional materials from the Information Commissioner and EDPB, which will enable more demanding users to easily find additional information regarding specific issues. The last chapter contains examples of the most common mistakes encountered in practice. These examples stem from the conclusions of a special working group on cookies that operated within the EDPB and thus reflect the practices of all supervisory authorities in the EU, not just the Information Commissioner.

However, website operators must be aware that the definitive answer to the question of how to manage cookies on a specific website always depends on the circumstances of each individual case. Situations can vary significantly, making it impossible to provide answers in advance to all questions that may arise in practice. Nevertheless, these guidelines present numerous starting points that greatly facilitate this task for operators, especially if they avoid the presented examples of bad practices.

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## 2. WHAT ARE COOKIES AND SIMILAR TRACKING TECHNOLOGIES?

What are cookies?

Cookies are small text files that are transferred to the user's device when they visit a website and allow for the recognition of the user's device, as well as remembering their settings or past actions. For example, the use of cookies enables an online store to remember previous purchases or language settings of the website, thereby contributing to a more user-friendly browsing experience.

Based on the retention period of cookies, we distinguish between temporary and permanent cookies. Temporary or session cookies "live" from the moment the user visits the selected website until the moment they close the browser and end the session. Permanent or stored cookies, on the other hand, remain stored even when the user closes the browser and ends the session; they can be stored for several days, months, or even years.

What other tracking technologies do we know?

The Electronic Communications Act not only regulates the use of cookies but also generally speaks about the storage of data or obtaining access to data stored on the terminal equipment of the subscriber or user, regardless of the technology used. Other technologies that enable tracking users online include Local Shared Objects (so-called Flash cookies), web beacons (so-called pixel tracking), and browser fingerprinting (recognition of the user's browser signature); they can also include applications on mobile devices, tablets, or other smart devices.

For clarity and transparency, the term cookies will be used in these guidelines to refer to all

technologies that enable the storage or retrieval of data from the user's equipment.

What does the term terminal equipment encompass?

Terminal equipment refers to all equipment that is directly or indirectly connected to the network interface of a public communication network for sending, processing, or receiving information.

Typically, this includes computers or mobile devices such as tablets and smartphones, as well as internet-connected televisions, gaming consoles, and similar devices (including connected cars). The term is defined in more detail in point 88 of Article 3 of the Electronic Communications Act (ZEKom-2).

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S m e r n i c e I n f o r m a c i j s k e g a p o o b l a š č e n c a

### 3. LEGISLATIVE FRAMEWORK REGARDING THE USE OF COOKIES

The fundamental provisions regarding the use of cookies and similar tracking technologies are contained in Article 225 of the Electronic Communications Act (hereinafter: ZEKom-2). Unlike the protection of personal data, which is intended to safeguard individuals' rights concerning personal data relating to them, the legal protection under ZEKom-2 pertains to electronic communications and the networks and devices that enable them. Therefore, it is not decisive whether a cookie or another tracking technology processes personal data or merely (non-personal) data, as the protection of Article 225 of ZEKom pertains to the storage and access to data. However, this question may be important if the controller wishes to further process personal data obtained in this manner; in this case, the provisions of the General Data Protection Regulation apply.

The legal framework is supplemented by relevant provisions of regulations in the field of personal data protection, primarily the General Data Protection Regulation concerning the consent of individuals and the provision of appropriate information.

Detailed information

Electronic Communications Act - ZEKom-2

<http://www.pisrs.si/Pis.web/pregledPredpisa?id=ZAKO8611>

General Data Protection Regulation

<https://eur-lex.europa.eu/legal-content/SL/TXT/PDF/?uri=CELEX:32016R0679&from;=SL>

Data Protection Act – ZVOP-2

<http://www.pisrs.si/Pis.web/pregledPredpisa?id=ZAKO7959>

Detailed information

EDPB, Guidelines 2/2023 on the technical scope of Article 5(3) of the Directive on Privacy and Electronic Communications

[https://edpb.europa.eu/system/files/2023-11/edpb\\_guidelines\\_202302\\_technical\\_scope\\_art\\_53\\_eprivacydirective\\_en.pdf](https://edpb.europa.eu/system/files/2023-11/edpb_guidelines_202302_technical_scope_art_53_eprivacydirective_en.pdf).

EDPB, Guidelines 01/2020 on the processing of personal data in the context of connected vehicles and mobility-related applications

[https://edpb.europa.eu/system/files/2021-03/edpb\\_guidelines\\_202001\\_connected\\_vehicles\\_v2.0\\_adoped\\_en.pdf](https://edpb.europa.eu/system/files/2021-03/edpb_guidelines_202001_connected_vehicles_v2.0_adoped_en.pdf)

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S m e r n i c e I n f o r m a c i j s k e g a p o o b l a š č e n c a

The first and second paragraphs of Article 225 of ZEKom-2 stipulate:

(1) The storage of data or access to data stored in the terminal equipment of the subscriber or user is permitted only on the condition that the subscriber or user has consented after being clearly and comprehensively informed about the controller and the purposes of processing such data in accordance with the regulations governing the protection of personal data.

(2) Notwithstanding the provisions of the previous paragraph, technical storage of data or access to it is permitted solely for the transmission of a message over an electronic communications network, or if it is strictly necessary to provide an information society service explicitly requested by the subscriber or

user.

## A. INFORMING THE INDIVIDUAL

### WHAT INFORMATION ABOUT COOKIES MUST THE WEBSITE CONTROLLER PROVIDE TO THE USER?

ZEKom-2 stipulates that the website controller must provide the user or subscriber with clear and comprehensive information about the controller and the purposes of data processing in accordance with the regulations governing the protection of personal data before the user gives consent.

The General Regulation states in Article 13 a list of information that the controller is obliged to provide to the individual to whom the personal data relates; in the case of the use of cookies, this is the user or subscriber of the terminal device, and it includes at least:

1. the identity and contact details of the controller and its representative,
2. contact details of the data protection officer,
3. the purposes for which personal data are processed and the legal basis for their processing,
4. users or categories of users of personal data,

The website controller must clearly and comprehensively inform the user about the use of cookies or access to data on the terminal equipment of the subscriber or user in any case regarding the circumstances of data processing. If it concerns cookies for which prior consent is required, the website controller must inform the user or subscriber, before obtaining their consent, at least that the website uses cookies, what types of cookies are used, for what purpose, and who the controller is. All other information regarding the circumstances of data processing can be provided via a link that is mentioned alongside this information and is easily accessible to the user. If the website controller only uses essential cookies, the information can also be provided via a link, or it can also be stated in a pop-up banner, which in this case does not contain a request for consent.

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#### **\*\*Information Notice for Data Subjects\*\***

5. Notification that the controller intends to transfer personal data to a third country and the legal basis for the transfer,
6. The retention period for personal data or the criteria used to determine that period,
7. Notification of the rights that the individual may exercise,
8. Notification of the possibility to withdraw consent,
9. Notification of the right to lodge a complaint with a supervisory authority,
10. The existence of automated decision-making, including profiling, meaningful information about the reasons for it, and the significance and anticipated consequences of such processing for the individual to whom the personal data relates.

The website controller must inform the user or subscriber, before obtaining their consent, at least that the website uses cookies, what types of cookies are used, for what purpose, and who the controller is. All other information regarding the circumstances of data processing may be provided via a link that is included with this information and is easily accessible to the user. In order for the individual to provide informed, specific, and unambiguous consent, they must be informed not only about the categories of cookies that will be installed on their terminal device (for example, necessary, analytical, and advertising cookies), but they must also be made aware of the specific cookies, their purposes, and their duration. Only in this way do website controllers meet the requirements for transparency of processing, the principle of purpose limitation, and storage limitation.

We advise website controllers to specify all cookies they use within their cookie policy, clearly define the purpose of each cookie, and its duration.

#### **\*\*HOW SHOULD WEBSITE CONTROLLERS PROVIDE CLEAR INFORMATION IF THEY USE BOTH NECESSARY COOKIES AND COOKIES FOR WHICH USER CONSENT IS REQUIRED?\*\***

The website controller must explain to individuals in an understandable manner that the installation of certain cookies cannot be avoided because they are necessary for the functioning of the website or for the transmission of a message over a network, and therefore do not require consent. If the website

uses both cookies for which consent is not required and cookies for which consent is required, we advise controllers to present information about necessary cookies and message transmission cookies (i.e., cookies for which consent is not required) separately from information about cookies based on consent.

Detailed information

Working Group under Article 29 – Guidelines on Transparency under Regulation (EU) 2016/679

[https://edpb.europa.eu/system/files/2023-09/wp260rev01\\_en.pdf](https://edpb.europa.eu/system/files/2023-09/wp260rev01_en.pdf)

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**\*\*Guidelines for Data Subjects\*\***

## **B. USE OF COOKIES THAT FALL UNDER EXCEPTIONS**

**\*\*WHEN CAN A WEBSITE CONTROLLER INSTALL COOKIES WITHOUT CONSENT?\*\***

The Electronic Communications Act (ZEKom-2) provides for two exceptions under which a website controller may use cookies without obtaining prior consent from the user:

1. Cookies that are necessary solely for the transmission of a message over an electronic communications network ("message transmission cookies"), and
2. Cookies that are strictly necessary to provide a service of the information society that the subscriber or user has explicitly requested ("necessary cookies").

**\*\*WHAT ARE MESSAGE TRANSMISSION COOKIES?\*\***

These are cookies that the website needs in order to transmit a message, as without such a cookie, the message could not technically be transmitted over the communications network.

Since this is an exception, it must be interpreted narrowly – cookies that enable faster message transmission or better management of the transmission do not fall within this exception, and their use requires prior consent from the user or subscriber.

**\*\*WHAT IS A SERVICE OF THE INFORMATION SOCIETY?\*\***

Examples of services of the information society are listed in the Electronic Market Act in point 11 of Article 3, namely:

- Sale of goods or services,
- Access to data or advertising on the World Wide Web,
- Access to a communications network, data transmission, or storage of the recipient's data in a communications network.

Most website controllers and web applications offer a service of the information society.

**\*\*WHICH COOKIES ARE NECESSARY TO PROVIDE A SERVICE OF THE INFORMATION SOCIETY?\*\***

Necessary cookies are only those without which the provider cannot offer the service of the information society to the user, who has also clearly expressed their will to receive this service, for example, by clicking on a specific place, making a specific selection, setting, and so on.

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## **Guidelines for the Information Society Service Provider**

Necessary cookies also represent an exception to the rule, and therefore we interpret them narrowly. If a specific cookie only ensures better functioning of certain functionalities of the website, it is not a necessary cookie, and the website operator must obtain the user's consent for it. In this context, necessity is assessed from the perspective of the individual user or subscriber and not from the perspective of the website operator. Some website operators may urgently need advertising cookies, as advertising may represent a key part of their revenue; however, such cookies are not necessary from the user's perspective for providing an information society service and therefore do not fall within the scope of this exception.

Examples of necessary cookies

1. Cookies that ensure the correct flow of requests and information between servers and endpoints (load balancing or reverse proxying).
  2. Cookies used for the website to remember the user's entries in web forms or shopping carts.
  3. Cookies that are necessary for the website to remember the user after they have logged into the service (e.g., in online banking or other services where the user logs in with their username and password).
  4. Cookies that detect incorrect entries and thus prevent abuse of login and registration systems.
- We remind website operators that the assessment of whether it falls under one of the exceptions for which they do not need the individual's consent always depends on the circumstances of each specific case.

Examples of cookies that do not meet the requirements for necessary cookies

1. Cookies that enable better functionalities, better operation of the website, or a better user experience, for example, cookies that track the user so that the website operates in a language familiar to them, even if the user did not specifically request this.
2. Cookies that the website or application uses for the purpose of traffic monitoring (analytical cookies). Analytical cookies can be first-party cookies (the website analyzes events for its own purpose with its own cookies) or the website may use other cookies (analytics is performed by a third-party contractor, e.g., Google Analytics, which may also use the collected data for its own purposes). Analytical cookies are never necessary, so website operators must always obtain prior consent for them.
3. Cookies related to advertising and marketing purposes, including cookies intended for price differentiation based on the user profile and content customization based on the profile, limiting the number of ad displays (frequency capping), detecting click fraud, research and marketing analysis, product improvements based on usage data. They can be loaded by the visited website (1st party) or come from third parties (advertising networks, partner websites, service providers – 3rd party). User consent is always required for the use of such cookies.
4. Cookies related to social media plugins when used as tracking cookies and do not cease after the user logs out of the social network. With such cookies, the social network operator can track the user (member or non-member) across all different websites where social media plugins are present. Tracking non-members is never permissible, while social networks can track their members in this way if they obtain their consent.

**CAN WE REALLY NOT USE ANALYTICAL COOKIES WITHOUT PRIOR CONSENT, EVEN THOUGH THEY ARE NECESSARY FOR US TO USE THE WEBSITE?**

Necessary cookies represent an exception to the rule, and therefore we interpret them narrowly. Necessity is assessed from the perspective of the user and not from the perspective of the website operator. Although website operators often claim that they urgently need analytical cookies upon the user's first visit to monitor the performance and visits to their website, such cookies are not necessary from the user's perspective for providing an information society service and therefore do not fall within the scope of this exception. The topic of analytical cookies is addressed by the EU proposal for the e-Privacy Regulation, which aims to establish certain exemptions for analytical cookies, especially for those that do not significantly intrude on an individual's privacy (first-party cookies). When the regulation will be adopted is unclear, but once adopted, it will apply uniformly in all EU member states and will be directly applicable. Until then, the restrictions set by the current legislation apply, under which consent is required for analytical cookies, and this must be prior and active (and not the so-called opt-out solution).

Further information

Working Party on Article 29 – Opinion 4/2012 on the exception regarding consent for cookies: the opinion explains in detail which cookies meet the conditions for the exception and which do not meet the requirements for necessary cookies.

[https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2012/wp194\\_en.pdf](https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2012/wp194_en.pdf)

Working Party on Article 29 - Opinion 9/2014 on the application of Directive 2002/58/EC regarding

device fingerprinting

[https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2014/wp224\\_en.pdf](https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2014/wp224_en.pdf)

EDPB - Opinion on the proposal for the EU regulation on e-privacy

[https://edpb.europa.eu/system/files/2021-03/edpb\\_statement\\_032021\\_eprivacy\\_regulation\\_en\\_0.pdf](https://edpb.europa.eu/system/files/2021-03/edpb_statement_032021_eprivacy_regulation_en_0.pdf)  
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Guidelines for Information of the Data Subject

## C. USE OF COOKIES WITH USER CONSENT

### WHAT IS CONSENT?

The conditions for valid consent are governed by general legislation in the field of personal data protection, which also applies when assessing the validity of the consent of the client or user for the installation of cookies on their terminal device. The General Data Protection Regulation defines consent as any voluntary, specific, informed, and unambiguous indication of the data subject's wishes, by which they signify agreement to the processing of personal data relating to them, through a statement or a clear affirmative action. The website operator must be able to demonstrate that they have obtained valid consent from the user or client.

A statement or clear affirmative action must meet the following conditions to be considered valid consent, namely it must be:

1. demonstrable,
2. voluntary,
3. specific,
4. informed, and
5. unambiguous.

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Guidelines for Information of the Data Subject

### CAN A WEBSITE OBTAIN CONSENT FOR ALL COOKIES IT USES AT ONCE?

In principle, yes, but the individual must be informed about all cookies used by the website and their purposes, and they must also be allowed to give separate consent for each type of cookie at least regarding the purpose. The operator can ensure this, for example, by informing the user in a pop-up banner about the types of cookies they use and allowing them to consent to the installation of all, but the website must also offer the user the option to express their preferences regarding individual types of cookies by purpose. The website operator can provide such a choice directly in the pop-up banner without redirecting the user to other links on the website. It is important that the individual always has control over which cookies are installed on their device. Some cookies may be recognized by the individual as beneficial for improving their user experience on the website, while they may not want others that track their activities or collect data for analytical or advertising purposes. Therefore, the individual must be given the choice of which specific cookies they wish to install and which they do not.

### CAN A WEBSITE INSTALL COOKIES WITHOUT CONSENT AND REQUIRE USERS TO OPT-OUT (THE SO-CALLED OPT-OUT MECHANISM)?

No, the Electronic Communications Act (ZEKom-2) and the General Data Protection Regulation clearly require prior active consent from the user or client. Solutions where cookies are installed as soon as the user visits the website, and before they have had the opportunity to express consent, allowing only for the user to subsequently refuse cookies, are not appropriate. Exceptions are only made for essential cookies and cookies for the transmission of a communication.

Further Information

Information Commissioner – Consent

<https://www.ip-rs.si/zakonodaja/reforma-evropskega-zakonodajnega-okvira-za-varstvo-osebni-podatkov/klju%C4%8Dna-podro%C4%8Dja-uredbe-privolitve>

## Guidelines for Information of the Data Subject

### CAN THE WEBSITE OPERATOR CONDITION THE USE OF THE WEBSITE ON CONSENT TO COOKIES (COOKIE WALL)?

Cookie walls require users to consent to all cookies used by the website if they wish to access the content of the website. In such cases, users do not have the option to avoid cookies, even though their installation is not necessary for the operation of the website or the provision of the service. Their choice is merely apparent, as they are effectively forced to consent to the installation of all cookies to continue using the website (the "take it or leave it" approach).

The assessment of the permissibility of using cookie walls depends on the circumstances of each individual case, but in principle, conditioning the use of a specific service or functionality of the website on consent to cookies is not allowed. According to Recital 25 of the Directive on Privacy and Electronic Communications, "access to specific content on a website may still be conditioned on the appropriate informed acceptance of a cookie or similar device, if it is used for legitimate purposes."

However, the subsequently adopted General Data Protection Regulation has set stricter conditions for the validity of consent than the previously applicable Data Protection Directive and the national legislation based on it (see above regarding the validity of consent). Furthermore, the text of the recital must be interpreted narrowly, as it constitutes an exception to the rule.

The Working Document of the Article 29 Working Party also indicates that websites must not condition "general access" to the website on the acceptance of cookies, but may only restrict specific content if the user does not consent to cookies, and only when there is an explicit legitimate purpose for doing so.

### CAN A USER GIVE CONSENT TO THE USE OF COOKIES THROUGH THE APPROPRIATE SETTINGS IN THE BROWSER OR OTHER APPLICATIONS?

ZEKom-2 in the third paragraph of Article 225 does allow for the possibility that a user expresses their consent through the appropriate settings in the browser or other applications, but only if this is technically feasible.

#### Further Information

Article 29 Working Party – Working Document 02/2013 with Guidelines on Obtaining Consent for Cookies

[https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2013/wp208\\_en.pdf](https://ec.europa.eu/justice/article-29/documentation/opinion-recommendation/files/2013/wp208_en.pdf)

## Guidelines for Information of the Data Subject

feasible and effective and in accordance with the regulations governing the protection of personal data. In practice, the use of this method for expressing consent (at least for now) is difficult to implement due to the strict requirements set by the General Data Protection Regulation for the validity of consent.

Among other things, consent must be clearly expressed through an affirmative action to be valid; prior expressed will in the form of pre-set and confirmed choices does not suffice to meet this condition. In the context of browser settings that express consent regarding the installation of cookies, this would mean that the user or subscriber must be explicitly prompted to check and, if necessary, adjust their browser settings.

Browsers (or even different versions of the same browser) contain various sophisticated mechanisms for adjusting privacy settings and protection against tracking, which can also be enabled by different extensions (browser extensions). Therefore, to ensure that browser settings meet the conditions of the

General Data Protection Regulation regarding the validity of consent, the default initial setting in the browser should disable the loading of cookies. The IP is not aware of any model available on the market at the time of writing these guidelines that would meet this condition. Likewise, website operators cannot reasonably expect that all users of their websites will actually have the necessary knowledge to adjust their browser settings to reflect their preferences regarding the installation of cookies.

#### CAN A USER PROVIDE VALID CONSENT WITHIN THE TERMS OF USE OF A WEBSITE?

As a rule, a user must provide separate consent if the processing of personal data pursues multiple different purposes; therefore, we advise website operators to separate the terms of use of the website from the cookie policy and the collection of consents for this purpose.

Consent given within the terms of use of a website is problematic both in terms of its voluntariness and its specificity and unambiguity. The terms of use of a website are intended to regulate broader issues regarding the relationship between the website operator and its user; for example, online stores define the terms of business in accordance with consumer law, news portals regulate moderation policies and rules regarding user-generated content, and some websites impose age restrictions regarding access to the website.

From the fourth paragraph of Article 7 of the General Data Protection Regulation, it follows that linking consent to the acceptance of general terms – or, in general, conditioning the provision of a contract or service on consent to the processing of personal data that is not necessary for the execution of that contract or service – signals that this is consent that is not given voluntarily, thereby calling into question its validity. In this way, the General Data Protection Regulation ensures that consent to the processing of personal data does not become a quid pro quo that conditions access to certain services and functionalities. In other words, it prevents personal data from becoming a currency with which users pay for access to certain services.

#### CAN A USER CHANGE THEIR MIND AND WITHDRAW CONSENT LATER?

An individual has the right to withdraw their given consent at any time in as easy a manner as it was given. Website operators must allow users to withdraw consent for cookies at any time and to do so in as easy a manner as they initially consented to their processing. This can be achieved in various ways, for example, by providing a clearly marked link to a subpage where users can withdraw their consent or by placing an icon on the website that is permanently visible and allows for easy withdrawal of consent.

If an individual later changes their mind and withdraws consent, and cookies have already been installed on their terminal device, the operator must delete non-essential cookies if technically feasible, or inform the individual how they can delete the cookies themselves. Such notification must not only include information that the individual can delete cookies but must also contain detailed instructions on how to achieve deletion that are clear and sufficiently understandable to empower the average user and actually enable them to exercise their rights.

#### WHEN MUST CONSENT BE OBTAINED?

The website operator must obtain consent before installing a cookie or other tracking technology on the user's or subscriber's terminal device, unless it falls under one of the exceptions for which consent is not required, as explained above.

#### IN WHICH CASES MUST THE WEBSITE OPERATOR OBTAIN RENEWED CONSENT?

If the website operator introduces significant changes regarding cookies (e.g., introduces new cookies for service personalization and behavioral advertising that were not previously implemented), they must obtain new consent from the user. Consent is always given for a specific purpose – when the purpose changes, the previous consent is no longer valid.

## HOW OFTEN CAN A WEBSITE OPERATOR REQUEST THAT AN INDIVIDUAL CONSENTS TO THE INSTALLATION OF COOKIES?

In practice, there are websites that, if an individual does not consent to the installation of cookies immediately, display the consent banner or "pop-up" window again on every subsequent subpage of the website. The EDPB has expressed the view in its guidelines on deceptive design patterns that this method of obtaining consent can be misleading. Regardless of whether the reason for this is the technical structure of the website or a covert encouragement for individuals (nudging) to consent to cookies, we recommend that website operators allow individuals to have their choice remembered by the website. Such a solution is more user-friendly as it reduces consent fatigue.

## WHAT SHOULD BE THE DURATION OF A COOKIE?

In principle, the duration of a cookie should be limited to the time necessary to achieve the purpose that the cookie pursues. Cookies for which the website operator does not need to obtain prior consent from the user (essential cookies and cookies for the transmission of a communication, see Chapter 3.B.) should therefore, in most cases, be temporary or session cookies and must be deleted when the user closes the browser. A longer duration for these cookies is only permissible if it is necessary to achieve the cookie's purpose and must be specifically justified by the website operator.

The duration of other cookies also depends on the purpose they pursue, but compared to cookies for which an exception applies, they can be stored for a longer period. The condition for a longer storage period is that the operator actually needs them for a legitimate purpose, their use is proportionate to the pursued goal, and users or subscribers are informed about their storage duration.

In particular, website operators must pay attention to tools they integrate into their web service that may contain cookies with a preset duration that could be disproportionately long (for example, a cookie with a duration until January 31, 3000). In such cases, operators must, if necessary, adjust the cookie's duration according to the pursued purpose; otherwise, they should avoid using such a tool.

## WHAT IS THE REGULATION REGARDING COOKIES SERVING DIFFERENT PURPOSES?

If a cookie serves multiple different purposes, for example, if it is essential for providing an information society service but also provides the website operator with some additional data, the website operator must still obtain the user's or subscriber's consent for its use. Therefore, the website operator can only avoid this obligation if all purposes are such that they could be exempted from the obligation to obtain consent.

## WHAT ARE THE OBLIGATIONS FOR WEBSITE OPERATORS WHO ONLY USE COOKIES FOR WHICH THEY DO NOT NEED INDIVIDUAL CONSENT?

Website operators who only use cookies for which the consent exemption applies, or do not use cookies at all, do not need to install a banner on the website and allow users to express their agreement to the use of such cookies, as their installation is always permitted regardless of the user's or subscriber's choice. Nevertheless, they must provide all information in accordance with Article 13 of the General Data Protection Regulation in an easily accessible location on the website.

## WHO IS RESPONSIBLE FOR ENSURING THAT COOKIES ARE USED IN ACCORDANCE WITH APPLICABLE LAW?

Two different situations must be distinguished based on what cookies the website uses and for what purpose:

### 1. The website uses its own cookies for its own purposes

If the website uses cookies for its own purposes, the website operator is responsible for ensuring that their use complies with applicable law, i.e., that consent is appropriate and obtained lawfully, that users are properly informed about the circumstances of cookie use, that their duration is proportionate, and that other requirements described in these guidelines are met.

### 2. The website also uses third-party cookies that pursue their purposes

Most websites also use third-party cookies, such as advertising networks, providers of affiliate

services, analytical services, social media, commenting services, various modules from third-party providers, and similar. In this case, both the originating website and the third party have certain responsibilities. Consent does not need to be obtained from both, but their relationship must be clear.

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#### **\*\*Guidelines for Information Obligation\*\***

It is determined who will take care of this, which can also be ensured by including contractual provisions regarding the obligations of either party in relation to obtaining user consents.

As a rule, the originating website, which has direct contact with the user, will obtain consent and is therefore in a better position to ensure consent and inform the user about the circumstances of cookie usage. However, this does not mean that a third party can always evade responsibility in this way; if it is an operator as defined in the field of personal data protection, who further processes personal data obtained through cookies for other purposes, that operator is fully responsible for compliance with the provisions of the relevant legislation in the field of personal data protection.

#### **\*\*WHO IS RESPONSIBLE FOR COMPLIANCE IF THE WEBSITE OPERATOR USES CONSENT MECHANISMS FROM AN EXTERNAL PROVIDER?\*\***

There are numerous providers of consent mechanisms (consent banners, pop-up windows, and similar mechanisms) in the market that advertise that their products are compliant with EU rules on personal data protection. We emphasize that the responsibility for compliance with personal data protection rules, including compliance regarding the use of cookies and other tracking technologies, always lies with the operator, who must also be able to demonstrate this in accordance with the principle of accountability. We advise you that if you use consent mechanisms from an external provider, you should closely monitor whether the mechanism used actually ensures the obtaining of consents that comply with the General Data Protection Regulation.

#### **\*\*WHAT SHOULD WEBSITE OPERATORS BE PARTICULARLY AWARE OF WHEN USING THIRD-PARTY ADVERTISING COOKIES?\*\***

Third-party advertising cookies and related tracking technologies enable online behavioral advertising, which represents a fundamental source of revenue for many website operators. Advertising cookies are not among the exceptions for which prior user consent is not required; therefore, their use is only permissible if the user has consented to it, having been informed beforehand about the circumstances of the data processing concerning them. However, the sharing of data among various players in the ad tech industry is extremely complex and opaque, making it difficult for users to be provided with adequate information about the processing of their data. It should be noted that only adequately informed consent can be valid.

From the perspective of obtaining consent, programmatic advertising or real-time advertising is particularly problematic, as it tailors the advertising message to the end user's preferences using advanced algorithms and already collected data about the end user. The sale of advertising space in programmatic advertising occurs in real-time, usually while the webpage is loading, making it impossible to predict in advance with whom the user's data will be shared. On the other hand, the principle of transparency requires that users have the ability to foresee the scope and consequences of the data processing concerning them. Therefore, website operators must be as specific as possible when providing adequate information. General statements that cookies are used for advertising purposes and that they may also be shared with third parties are not adequate.

#### **\*\*CAN DATA COLLECTED THROUGH COOKIES BE STORED OUTSIDE THE EU?\*\***

Especially when using third-party cookies, it may happen that personal data collected through such cookies is transferred to a third country, i.e., a country outside the EU or the European Economic Area. The transfer of personal data to a third country is only permissible if the conditions set out in Chapter V of the General Regulation are met. In general, the rule is that the level of protection of personal data must not be reduced due to the transfer to a third country compared to the protection provided by the General Regulation. The operator can demonstrate that the level of protection of personal data in a

third country is adequate in various ways: by means of an adequacy decision, appropriate safeguards, or on the basis of exceptions in specific cases.

**\*\*Detailed Information\*\***

Working Party on Article 29 – Guidelines on Transparency under Regulation (EU) 2016/679

[https://edpb.europa.eu/system/files/2023-09/wp260rev01\\_en.pdf](https://edpb.europa.eu/system/files/2023-09/wp260rev01_en.pdf)

**\*\*Detailed Information\*\***

Information Commissioner – Transfer of Personal Data to Third Countries or International Organizations

<https://www.ip-rs.si/varstvo-osebni-podatkov/obveznosti-upravljavcev/prenos-osebni-podatkov-v-tret-je-drzave-in-mednarodne-organizacije/>

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Guidelines for Information Society Service Providers

Some frequently used and popular tools for monitoring website traffic are based on the transfer of personal data to third countries, primarily to the USA.

On July 10, 2023, the European Commission adopted a decision on the adequacy of personal data protection based on the framework for data privacy between the EU and the USA. The decision indicates that the USA provides an adequate level of protection (comparable to the EU) for those personal data transferred from the EU to those American companies that have joined the new framework.

Based on the adequacy decision, personal data from the EU can be safely transferred to those companies in the USA that participate in the framework for data privacy between the EU and the USA (EU-US Data Privacy Framework (DPF)), without the need to implement additional protective measures for data protection in accordance with Article 46 of the General Data Protection Regulation. American companies can join the data privacy framework based on a commitment to comply with a detailed set of obligations regarding privacy protection, such as the requirement to delete personal data when they are no longer necessary for the purpose for which they were collected, and ensuring continuous protection when personal data is shared with third parties. A list of companies participating in the framework is publicly available at the following website:

<https://www.dataprivacyframework.gov/s/participant-search>.

Detailed Information

Commission – Adequacy Decisions

[https://commission.europa.eu/law/law-topic/data-protection/international-dimension-data-protection/adequacy-decisions\\_sl?ettrans=sl](https://commission.europa.eu/law/law-topic/data-protection/international-dimension-data-protection/adequacy-decisions_sl?ettrans=sl)

EDPB - Report on the work carried out by supervisory authorities within Task Force 101

[https://edpb.europa.eu/system/files/2023-04/edpb\\_20230328\\_report\\_101task\\_force\\_en.pdf](https://edpb.europa.eu/system/files/2023-04/edpb_20230328_report_101task_force_en.pdf)

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Guidelines for Information Society Service Providers

#### 4. HOW TO ENSURE COMPLIANCE WITH APPLICABLE RULES REGARDING THE USE OF COOKIES AND SIMILAR TRACKING TECHNOLOGIES IN PRACTICE?

##### 1. Identify what cookies you are using.

In the first step, we advise website operators to carefully check:

- what types of cookies you are using: only first-party cookies or also third-party cookies;
- what the purpose of using cookies is: whether they are necessary for the operation of the website, improve its performance, are intended for analytics, advertising, or serve some other purpose;
- how invasive the cookies used are regarding the amount and type of data that the use of the cookie entails: cookies that do not contain personal data are less invasive than those with personal data, and cookies that contain a limited amount of personal data are also less invasive;
- what the duration of the cookies you are using is: session cookies or persistent cookies, and for the

latter, it is also important how their duration is determined.

The key in this step is to obtain accurate and complete information about the cookies used, as this will allow you to determine the appropriate and lawful regime for their use in the subsequent steps.

## 2. Assess whether you actually need all cookies based on the service you provide.

Once you have all the data about the cookies used, assess for each of them whether you actually need and use it based on the service you provide. Many websites, for example, use analytical tools that record the number of visitors and their movement across the website, but they never check and further use this data, raising the question of the sensibility of using such tools. In this way, you can reduce the number of cookies to only those that your website or you as its operator actually need based on real needs, thereby also reducing the possibility of potential violations.

## 3. Check whether you can reduce the invasiveness of cookies.

For the remaining cookies that you have assessed your website needs, check whether you can reduce their invasiveness, for example, by storing cookies for a shorter period.

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## Guidelines for Information Society Service Providers

## 4. Check whether the cookies you are using fall under the exceptions for which you do not need user consent.

When checking whether the cookies are those for which ZEKom-2 does not require the consent of the user or subscriber, pay special attention to the fact that exceptions are always interpreted narrowly, so the website operator must assess in each specific case:

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regarding cookies for the transmission of a message: is the transmission of a message technically not feasible without the use of a cookie?

–

regarding essential cookies: has the subscriber or user explicitly requested the information society service, and is it not possible to provide it without a cookie?

Various tools are available on the market that prepare a list of cookies used by the website based on the analysis of the site, and some tools also automatically categorize cookies into arbitrary categories, such as essential cookies, analytical cookies, and advertising cookies. Although such tools can be a welcome support in conducting a cookie audit, they operate based on relatively limited information that they typically read from your website, while all circumstances of the specific case must be considered when assessing whether they are essential cookies or cookies for the transmission of a message. Above all, do not be misled by the lofty promises of providers of such tools that you can check compliance with the law with just one click using their services. While the use of such tools can help you in a comprehensive assessment of the appropriateness of cookies, it cannot replace it. It also does not exclude the responsibility of website operators who use such a tool.

## 5. Ensure that the consents of your users for the use of cookies are compliant with applicable legislation.

In practice, there are several ways in which website operators can obtain the consent of users or subscribers, all of which must meet the requirements regarding voluntariness, specificity, informativeness, and unequivocalness of the declaration of will, which must be expressed by a statement or some other clear affirmative action. It is also important that you, as the operator, are able to prove that the obtained consents are valid.

Website operators most often obtain the consents of their users either by using pop-ups, banners, and similar techniques, or they obtain consent during the user registration process. The first method of obtaining consent is primarily used by websites that do not have an established lasting relationship with the user, while the second method is used when there is a lasting relationship between the user and the website, for example, based on a created user account, profile, or user registration.

### Pop-up banners or windows

Clearly inform the user in the pop-up window about the use of all types of cookies, including those that can be installed without their consent, and offer them the option to choose regarding the use of the remaining cookies. If the user agrees to the use of cookies, you may also install other cookies on their device. Consent must be expressed by a clear expression of agreement, such as by clicking the "I agree (to the use of cookies)" button. If the user does not agree to the use of cookies or remains passive (does not select any option), you may only install essential cookies and cookies for the transmission of a message on their device. It is crucial that the pop-up banner or window gives the user the option to choose whether to allow the installation of cookies or not. However, the user does not have such a choice if, for example, they only have a button to express agreement, if the banner only contains a notice that by continuing to browse the website they agree to the installation of cookies, or if the boxes that the user should use to express consent are pre-checked. Therefore, the consent banner or other mechanism for obtaining consent must necessarily include a "I do not agree" button or allow the user to refuse the installation of non-essential cookies on their terminal device in another similar way.

Some websites use the button "Accept only essential cookies" instead of the "I do not agree (to the use of cookies)" button. The result of both is the same: you can only install cookies for which you do not need to obtain consent, but it is more user-friendly and, above all, more understandable for the user to use a button that clearly expresses disagreement.

In practice, pop-up banners and windows often appear that contain both buttons, but the user's choice is reduced or even completely disabled due to misleading design. The decisions of users can be influenced by the use of different sizes, colors, and shapes of buttons (e.g., when the button for accepting cookies is differently colored, more emphasized, and more accessible than the button for disagreement). Such misleading practices are particularly problematic when they actually take away the user's ability to make a free choice.

### Consent in the user registration process

Obtaining consent is usually less complicated when the website has an established lasting relationship with the user, as the user has a user account or profile established on it or is a registered user of this website. In such cases, you can easily integrate the process of obtaining consent into the registration process. However, be particularly careful that cookies do not...

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### Guidelines for Information on Cookies

At the moment when an individual expresses their will regarding the placement of cookies, they are not yet stored on the user's terminal device.

6. Inform users about cookies in an easily accessible, clear, and understandable manner.

When providing appropriate information to users, you must pay attention not only to the content of the provided notice (What information must the controller provide to the user?), but also to the formal aspect of conveying information (How is the information communicated to the user?), which includes two aspects: (1) accessibility of information and (2) clarity and comprehensibility of information.

Information regarding the cookies used by the website must be easily accessible. Before obtaining consent from the user, you must inform them at least that the website uses cookies, which cookies are used, and for what purpose they are used. You do not need to provide all other information that you must provide to the user in accordance with Article 13 of the General Data Protection Regulation at the point where you obtain user consent, for example, in a pop-up banner or during user profile registration, but it suffices to provide a link to a subpage that contains all the required information. It is considered that the notice is easily accessible if the user can access it with one click on the link. The link to the complete information in accordance with Article 13 of the General Data Protection Regulation must be provided not only when obtaining consent but must also be accessible, for example, at the bottom of each subpage, so that the user can easily obtain information about the circumstances of the processing of their data at any later time.

In addition to easy accessibility, the information for users must be provided in a concise, clear, and understandable form and in plain and simple language, taking into account who the users of your website are and tailoring the notice to the level of understanding of the average user. Special attention should be paid to providing appropriate information to children if your website is intended for this target group. Explanations about data processing that are provided in a language incomprehensible to the user, either because they do not understand it at all or because the text uses excessively complex legal or technical language, are not adequate.

7. Place the option to withdraw consent to the use of cookies in a visible location.

You must enable users on your website to easily withdraw their consent to the placement of cookies on their device. Since applicable legislation does not prescribe the manner in which you must provide this option to users, you can choose the option that is most suitable for your website. However, it is crucial that users can withdraw their consent to the placement of cookies at any time and that they can do so in as easy a manner as they initially consented to their placement. You can ensure this by providing a clearly marked link to a subpage where users can withdraw their consent or by placing an icon on the website that is permanently visible and allows for easy withdrawal of consent.

8. Cookie Task Force – examples that do not meet the requirements of applicable legislation

The Cookie Banner Task Force of the EDPB highlights the following practices regarding the use of cookies that do not meet the requirements of applicable legislation:

1. The consent mechanism does not include a button to refuse cookies in the first step.
2. Pre-checked boxes in consent mechanisms.
3. Valid consent is not possible when the option to refuse cookies is presented only in text or on a link that is not graphically as prominently displayed as the consent button or is located outside the area where consent can be given.
4. Valid consent is not possible when the option to refuse is provided with a button, but the contrast between the button color and the text is so low that this option is difficult to read.
5. Cookies cannot be loaded on the legal basis of legitimate interest under the General Data Protection Regulation.
6. Cookies are incorrectly classified as essential.
7. There is no icon/button/link for subsequently refusing consent.
9. Do not forget – ensuring compliance is not a one-time obligation of the website controller, but requires continuous monitoring and adjustment to any legal and factual changes.

Detailed information

EDPB - Report on the work carried out by the Cookie Banner Task Force

[https://edpb.europa.eu/system/files/2023-01/edpb\\_20230118\\_report\\_cookie\\_banner\\_taskforce\\_en.pdf](https://edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf)